

		the same grounds and with the same information as in the Motion for Reconsideration. A motion to strike is generally used to address defects that appear on the face of a pleading or from matters of which a judge may take judicial notice and that are not grounds for demurrer. (<i>Pierson v. Sharp Memorial Hospital</i> (1989) 216 Cal.App.3d 340, 342.) As to the Defendant's assertion that this Court is acting as an advocate by referencing a code section in its ruling, the Court finds no merit to that charge by the Defendants. The California Court of Appeal held "'Courts are established to discover where lies the truth when issues are contested, and the final responsibility to see that justice is done rests with the judge.'" (<i>People v. Carlucci</i> (1979) 23 Cal.3d 249, 255 [152 Cal. Rptr. 439, 590 P.2d 15] (<i>Carlucci</i>) [discussing Evid. Code, § 775's codification of "traditional case law"]; accord, <i>Conservatorship of Pamela J.</i> (2005) 133 Cal.App.4th 807, 827 [35 Cal. Rptr. 3d 228] (<i>Pamela J.</i>)). As the Court of Appeal in <i>Pamela J.</i> explained, "'It apparently cannot be repeated too often for the guidance of a part of the legal profession that a judge is not a mere umpire presiding over a contest of wits between professional opponents, but a judicial officer entrusted with the grave task of determining where justice lies under the law and the facts between the parties who have sought the protection of our courts. Within reasonable limits, it is not only the right but the duty of a trial judge to clearly bring out the facts so that the important functions of his office may be fairly and justly performed.'" (<i>Pamela J.</i>, at p. 827.)." (<i>In re Emily D.</i> (2015) 234 Cal.App.4th 438, 446-447.) The Court DENIES the Defendant's Motion for Reconsideration as it fails to establish that the application for reconsideration is based on new or different facts, circumstances, or law. Plaintiff is ordered to provide notice of the Court's ruling.
12	30-2026-01570337 Rize LKMS, LLC vs. Richardson	The Court has read and considered the Defendant's Motion to Quash Service of Summons. The Court takes Judicial Notice of the Order to Serve Summons by Posting (ROA 10). The Court DENIES the Defendant's Motion to Quash Service of Summons. The Defendant is ordered to file a responsive pleading in 5 days. The Plaintiff is ordered to provide notice of the Court's ruling.
13	30-2026-01571657 Jefferson Centerpoint LLC vs. Mizner	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 12), the Complaint (ROA 2), and Plaintiff's Opposition (ROA 18). The Court OVERRULES the Demurrer. On the face of the Complaint, it is legally sufficient to state a cause of action. The Complaint does indicate what type of rental agreement was between the parties, contrary to the allegations in the demurrer.